

Court No. - 29

Case :- WRIT - C No. - 68592 of 2015

Petitioner :- Mukesh Chand Agarwal

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Amit Srivastava

Counsel for Respondent :- C.S.C., Ashutosh
Srivastava, Baleshwar Chaturvedi

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Put up this matter on next Wednesday i.e. 13.1.2016 in computer list. By that time requisite instructions in question be obtained both by respondent nos. 3 and 4 as to whether any assessment proceeding under Section 126 of the Electricity Act, 2003 has been undertaken or not.

Order Date :- 6.1.2016

RKP

Court No. - 29

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Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Amit Srivastava

Counsel for Respondent :- C.S.C.

Hon'ble V.K. Shukla,J.

Hon'ble Mahesh Chandra Tripathi,J.

Put up this matter tomorrow i.e. on 14.01.2016 in computer list.

Order Date :- 13.1.2016

A. Pandey

Court No. - 29

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Petitioner :- Mukesh Chand Agarwal

Respondent :- State Of U.P. & 4 Others

Counsel for Petitioner :- Amit Srivastava

Counsel for Respondent :- C.S.C., Ashutosh Srivastava, Baleshwar Chaturvedi

Hon'ble V.K. Shukla, J.

Hon'ble Mahesh Chandra Tripathi, J.

Heard learned counsel for the petitioner; Shri Baleshwar Chaturvedi for respondent nos. 1 and 2 and Shri Ashutosh Srivastava for respondent nos. 4 and 5.

Mukesh Chand Agarwal is before this Court with a request to issue a writ, order or direction in the nature of mandamus directing the respondents to resume the electricity supply to the shop of the petitioner and to reconnect the electricity connection bearing no.5045178 installed at the shop of the petitioner.

On the matter being taken up on the first day on 6.1.2016 from the side of the petitioner it has been contended that without undertaking any exercise for assessment the electricity connection in question has been disconnected. On such argument being advanced we proceeded to ask learned counsel representing the Corporation concerned to obtain requisite instructions in question and the requisite instructions in question have been obtained and as per the requisite instructions in question so obtained assessment proceeding under Section 126 of the Electricity Act, 2003 has been undertaken and a notice has been sent to the petitioner by way of speed post and even a copy of the said receipt has been produced before us at the point of time alongwith order of assessment.

Once such is the factual situation that is so emerging that assessment exercise has been undertaken, then in such stage we cannot straightaway proceed to pass an order directing resumption of electricity supply to the shop of the petitioner.

In this background as it has been stated before us that on account of theft assessment proceedings have been undertaken; the notice was sent and the provisional assessment has been presumed to be final at all, we cannot grant any relief or reprieve of the petitioner but we leave it open to the petitioner to pursue remedy as is available to him under U.P. Electricity Supply Code, 2003.

With this, present writ petition is dismissed.

Order Date :- 14.1.2016

RKP